

The Jharkhand Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2017

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State of Jharkhand - Act

The Jharkhand Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2017

JHARKHAND

India

The Jharkhand Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2017

Act 20 of 2017

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The Jharkhand Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2017

(Jharkhand Act

No. 20 of 2017

)

[Dated 3.11.2017.]

An Act to provide for, as a good governance measure, efficient, transparent, and targeted delivery of subsidies, benefits and services, the expenditure for which is incurred entirely from the Consolidated Fund of the State, to the individuals residing in the State of Jharkhand using Aadhaar as a sole identifier, and for matters connected therewith.

Whereas, it is expedient to make a law to provide for, as a good governance measure, efficient, transparent and

targeted delivery of subsidies, benefits and services, the expenditure for which is incurred entirely by way of withdrawal from the Consolidated Fund of the State, to the individuals residing in the State of Jharkhand using Aadhaar as a sole identifier, and to provide for matters connected therewith; it is hereby enacted in the Sixty-seventh Year of the Republic of India as follows:-

1.

(1)

This Act may be called the Jharkhand Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2017.

(2)

It extends to the whole of the State of Jharkhand.

(3)

It shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint; and different dates may be appointed for different provisions of this Act and any reference in any such provision to the commencement of this Act shall be construed as a reference to the commencement of that provision.

2.

(1)

In this Act, unless the context requires otherwise,-

(a)

"Aadhaar number" means an identification number issued to an individual under Section 3 of the Central Act;

(b)

"Agency of the State Government" means any authority or body established or constituted by any Central or State law in the State of Jharkhand including the local bodies, and any other body owned and controlled by the State Government and includes the bodies whose composition and administration are predominantly controlled by the State Government;

(c)

"authentication" means the process by which the Aadhaar number along with demographic information or biometric information of an individual is submitted to the Central Identities Data Repository for its verification and such Repository verifies the correctness, or the lack thereof, on the basis of information available with it;

(d)

"benefit" means any advantage, gift reward, relief or payment, in cash or kind, provided to an individual or group of individuals and includes such other benefits as may be notified by the State Government, from time to time;

(e)

"biometric information" means photograph, finger print, Iris scan, or such other biological attributes of an individual specified by the Central Act;

(f)

"Central Act" means the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016;

(g)

"Central Identities Data Repository" means a centralized database in one or more locations containing all Aadhaar numbers issued to Aadhaar number holders along with the corresponding demographic information and biometric information of such individuals and other information related thereto;

(h)

"Consolidated Fund of State" means a Consolidated Fund of the State of Jharkhand;

(i)

"demographic information" includes information relating to the name, date of birth, address and other relevant information of an individual as per the provisions of Central Act, but shall not include race, religion, caste, tribe, ethnicity, language, records of entitlement, income or medical history;

(j)

"enrolment" means the process to collect demographic and biometric information from individuals by the enrolling agencies for the purpose of issuing Aadhaar number to individual as provided under the Central Act;

(k)

"Government" or "State Government" means the Government of Jharkhand;

(l)

"prescribed" means prescribed by rules made under this Act;

(m)

"service" means any provision, facility, utility or any other assistance provided in any form to an individual or a group of individuals and includes such other services as may be notified by the State Government;

(n)

"subsidy" means any form of aid, support, grant, subvention or appropriation, in cash or kind, to an individual or a group of individuals and includes such other subsidies as maybe notified by the State Government, from time to time.

(2)

Words and expressions used in this Act but not defined hereinabove shall have the same meanings as respectively assigned to them under the Central Act.

3.

The State Government or, as the case may be, any Agency of the State Government, may, for the purpose of establishing identity of an individual as a condition for receipt of a subsidy, benefit or service for which the expenditure is incurred entirely by way of withdrawal from, or the receipt therefrom forms part of the Consolidated Fund of the State, or any fund set up by any Agency of the State Government, require that such individual undergo authentication, or furnish proof of possession of Aadhaar number or, in the case of an individual to whom no Aadhaar number has been assigned, such individual makes an application for enrolment:

Provided that, till such time an Aadhaar number is not assigned to an individual, the individual shall be offered alternate and viable means of identification for delivery of the subsidy, benefit or service.

4.

The State Government shall, within a period of three months from the date of commencement of this Act, and thereafter, from time to time, notify the list of schemes, subsidies, benefit or services for which such authentication or proof is required as per Section 3.

5.

The provisions of Chapter III and Chapter VI of the Central Act shall mutatis mutandis apply to authentication under this Act.

6.

The provisions of this Act shall be in addition to, and not in derogation of, the provisions of any other law for the time being in force.

7.

No suit, prosecution or other legal proceeding shall lie against the State Government or any officer, or other employees of the State Government for anything which is in good faith done or intended to be done under this Act or rules made thereunder.

8.

(1)

The State Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a)

specifying the manner of use of Aadhaar number for the purposes of providing or availing of various subsidies, benefits, services and other purposes for which Aadhaar number may be used;

(b)

any other matter which is required to be, or may be, specified, or in respect of which provision is to be made by rules.

(3)

Every rule made under this Act shall be laid, as soon as may be, after it is made, before the State Legislature, while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session or sessions immediately following, the State Legislature agree in making any modification in any rule or State Legislature agree that rule should not be made, and notify their decision to that effect in the Official Gazette, the rule shall, from the date of publication of such notification, have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or

annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

9.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the State Government may, as occasion arises, by an order published in the Official Gazette, do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for the purposes of removing the difficulty:

Provided that, no such order shall be made after the expiry of the period of two years from the date of commencement of this Act.

(2)

Every order made under sub-section (1) shall be laid, as soon as may be, after it is made, before the State Legislature.

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